

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rachel Buhner	Team: Squad #16	CCRB Case #: 201411463	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 11/11/2014 10:30 PM	Location of Incident: South Railroad Avenue and Jacques Avenue	18 Mo. SOL 5/11/2016	Precinct: 122		
Date/Time CV Reported Wed, 11/12/2014 12:23 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 11/12/2014 12:23 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Victor Bruno	01602	901239	NARCBSI
2. POM Ted Holway	17428	941041	NARCBSI
3. DT3 Anthony Massoni	1823	943534	NARCBSI

Officer(s)	Allegation	Investigator Recommendation
A . SGT Victor Bruno	Abuse: Sgt. Victor Bruno stopped § 87(2)(b) and an individual.	A . Substantiated
B . SGT Victor Bruno	Abuse: Sgt. Victor Bruno searched § 87(2)(b)	B . Unsubstantiated
C . SGT Victor Bruno	Abuse: Sgt. Victor Bruno searched an individual.	C . Unsubstantiated
D . POM Ted Holway	Abuse: PO Ted Holway searched the car in which § 87(2)(b) and an individual were occupants.	D . Unsubstantiated
E . SGT Victor Bruno	Abuse: Sgt. Victor Bruno searched the car in which § 87(2)(b) and an individual were occupants.	E . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

This complaint was filed via the Call Processing System on July 11, 2014 by § 87(2)(b) on behalf of his daughter, § 87(2)(b). He did not witness the incident. § 87(2)(b) provided a sworn statement to the CCRB on November 19, 2014.

On November 11, 2014, § 87(2)(b) was driving with her boyfriend, § 87(2)(b) and their friend, § 87(2)(b) last name unknown. They drove around their neighborhood in Staten Island, stopping and parking their vehicle periodically to sit and talk in the car. At approximately 10:30 p.m. they parked in front of a deli on Anthony J. Crecca Jr. Plaza between New Dorp Lane and Rose Avenue. The street view on Googlemaps.com indicates that there are two delis on this block within three or four storefronts of one another, one at 32 Anthony J. Crecca Plaza (Arianna Deli) and one at 44 Anthony J. Crecca Plaza (Deli & Grocery). § 87(2)(b) went inside the deli and returned with a bottle of water. They then drove one block away, to South Railroad Avenue and Jacques Avenue, and parked. At no point prior to this did they interact with any individuals or park beside any vehicles with occupants.

After approximately five minutes, a dark colored minivan allegedly pulled in front of them (**Allegation A**). Sgt. Bruno exited the front passenger seat and allegedly approached the passenger side of the car and began pulling on the door handle. § 87(2)(b) was seated in the front passenger seat, and Sgt. Bruno instructed him to open the door. § 87(2)(b) unlocked the door and exited, at which point Sgt. Bruno allegedly searched his sweatshirt and sweatpants pockets, and removed his wallet (**Allegation B**). Sgt. Bruno kept asking, "Where is it?", and asked why § 87(2)(b) had entered the deli. Sgt. Bruno asked why they were parked on the corner, and § 87(2)(b) explained they were waiting for a phone call from his mother.

During this time PO Holway exited from the driver's seat and approached § 87(2)(b). § 87(2)(b) did not recall PO Holway's interaction with § 87(2)(b) but believed that he asked § 87(2)(b) for identification. Sgt. Bruno then approached the rear of the car, where § 87(2)(b) was seated. § 87(2)(b) did not see this interaction, but allegedly heard Sgt. Bruno open the door and ask § 87(2)(b) to exit. § 87(2)(b) later informed her that Sgt. Bruno searched his pockets (**Allegation C**), but she did not witness this because she was focused on § 87(2)(b) and PO Holway. Sgt. Bruno then approached § 87(2)(b) door and asked her to step out. She exited, went to the back of the car, and stood near § 87(2)(b) and § 87(2)(b). She was not searched, but while standing outside, she observed PO Holway leaning into her vehicle through the driver's side door, and Sgt. Bruno entering through the front passenger door (**Allegation D and Allegation E**). § 87(2)(b) could not see what the officers were doing, but PO Holway and Sgt. Bruno were inside the vehicle for two to three minutes. At one point, PO Holway or Sgt. Bruno opened the trunk of the car, but § 87(2)(b) closed it and the officers did not reopen it or search it.

PO Holway took § 87(2)(b)'s identification and took it to the minivan. He returned a minute later, and one of the officers, § 87(2)(b) could not recall which, told her that her car smelled like marijuana and she should have it cleaned. The officers then returned to their vehicle and left before § 87(2)(b) or § 87(2)(b) returned to their vehicle. § 87(2)(b) alleged that there was no marijuana in her vehicle, and that when she re-entered her vehicle, the center console was not fully closed and that the items inside were in disarray.

Mediation, Civil and Criminal Histories

- On April 7, 2015, a Notice of Claim inquiry was submitted to the New York City Office of the Comptroller, and the result will be added to the case file upon its return (encl.7G).
- § 87(2)(b) was offered mediation, but declined on the recommendation of § 87(2)(b). Neither § 87(2)(b) nor § 87(2)(b) could be contacted.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) and the first complaint involving either § 87(2)(b) or § 87(2)(b) (encl.2D-2F).
- Sgt. Bruno has been a member of the NYPD for 22 years, has had three cases involving 10 previous CCRB allegations with no substantiated allegations. Sgt. Bruno has open cases containing allegations relevant to this case, such as a vehicle search, stop, and search of a person (encl. 2A).
- PO Holway has been a member of the NYPD for nine years, has had six CCRB cases involving 13 allegations with one substantiated allegation for a stop in case number 201201113. § 87(2)(g) (encl. 2B).
- Det. Massoni has been a member of the NYPD for eight years and has had six CCRB cases involving 11 allegations with no substantiated allegations. In addition to this current case, Det. Massoni has two other cases containing multiple allegations relevant to this investigation, 201404442 and 201406581 such as a vehicle search, stop, and search of a person (encl. 2C).

Police Documents

- The Tactical Plan indicates that Sgt. Bruno, PO Holway and Det. Massoni were the officers assigned to a blue Dodge, auto number 47417, on the incident date (encl.5A).

Potential Issues

- The only civilian involved in the interaction who provided a statement was § 87(2)(b). Contact attempts to § 87(2)(b) were exhausted, and absent contact information, § 87(2)(b) could not be contacted.
- All three officers deny that the incident occurred. § 87(2)(g)
- It is likely that the incident time provided by § 87(2)(b) is slightly inaccurate. According to Det. Massoni's memo book, at 9:10 p.m. the officers were en route to New Dorp, which is the neighborhood where the incident occurred. § 87(2)(g)

Finding and Recommendations

Explanation of Subject Officer Identification

- During the incident, § 87(2)(b) texted the license plate number of the officers' vehicle, § 87(2)(b), to her mother, and it was reported by § 87(2)(b) when he filed the complaint on behalf of § 87(2)(b). According to the Tactical Plan, Sgt. Bruno, PO Holway and Det. Massoni were the officers assigned to the vehicle on the incident date. Furthermore, Det. Jennifer Childs of Narcotics Borough Staten Island confirmed that Auto 47417 is a blue Dodge Caravan and its license plate is § 87(2)(e), § 87(2)(b).
- Although all three officers denied any recollection of the incident, the plate number, the vehicle description, and the officer descriptions all match the information provided by § 87(2)(b) during her statement. § 87(2)(g)

§ 87(2)(g)

Recommendations

Allegation A—Sgt. Victor Bruno stopped § 87(2)(b) and an individual.

§ 87(2)(g)

According to § 87(2)(b) approximately five minutes after her vehicle was parked, a dark colored minivan pulled up in front of them. An officer, identified via the investigation as Sgt. Bruno, then allegedly exited the minivan and approached § 87(2)(b)'s door, and began pulling on the door handle, saying, "Open the door". § 87(2)(b) unlocked the door, Sgt. Bruno opened it, and § 87(2)(b) exited.

Sgt. Bruno then requested § 87(2)(b) to exit the vehicle, as well as § 87(2)(b). They were instructed to stand behind the police van, which is where they remained until the incident concluded.

In their respective statements, Sgt. Bruno, PO Holway, and Det. Massoni all denied that this incident occurred. § 87(2)(g)

§ 87(2)(b) Sgt. Bruno, PO Holway and Det. Massoni stopped § 87(2)(b) and § 87(2)(b). Evidence leading to this conclusion includes § 87(2)(b) accurate description of the vehicle's license plate number, which was corroborated by the officers, and the accurate physical descriptions of the officers provided by § 87(2)(b) § 87(2)(g)

For an officer to stop a vehicle, he must have probable cause of a traffic infraction or reasonable suspicion that the vehicle or an occupant is involved in a crime. *People v. Robinson* Innocuous behavior alone, even in a high crime area, does not create founded or reasonable suspicion that a crime is afoot. *People v. Hampton*, 200 A.D.2d 466 (1st Dept. 1994) (encl.1V-1Z).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as substantiated.

Allegation B – Sgt. Victor Bruno searched § 87(2)(b)

Allegation C – Sgt. Victor Bruno searched an individual.

Allegation D – Sgt. Victor Bruno searched the car in which § 87(2)(b) and an individual were occupants.

Allegation E – PO Ted Holway searched the car in which § 87(2)(b) and an individual were occupants.

After exiting the vehicle, Sgt. Bruno allegedly searched § 87(2)(b) entering his sweatshirt and sweatpants pockets. Sgt. Bruno allegedly removed § 87(2)(b) wallet and looked into it, but did not remove anything. Additionally, Sgt. Bruno allegedly asked § 87(2)(b) “Where is it?” multiple times, though he never clarified what this was in reference to. Sgt. Bruno also allegedly asked § 87(2)(b) why he had gone to the deli, and § 87(2)(b) informed him it was to purchase a bottle of water.

After searching § 87(2)(b) Sgt. Bruno allegedly instructed § 87(2)(b) to exit the vehicle, and he complied. § 87(2)(b) did not witness this; however, § 87(2)(b) later informed her that Sgt. Bruno searched his pockets. Similarly, Sgt. Bruno also allegedly repeatedly asked § 87(2)(b) “Where is it?”, and again did not clarify what he was referring to. After both males had exited the vehicle, Sgt. Bruno approached § 87(2)(b) door and instructed her to exit. She was not searched, but remained outside the vehicle with § 87(2)(b) and § 87(2)(b) and an officer, determined by the investigation to be Det. Massoni.

After § 87(2)(b) and § 87(2)(b) had exited § 87(2)(b) vehicle, they were instructed to remain near the rear of the car. As § 87(2)(b) was walking to the rear of the vehicle, she observed an officer, identified via the investigation as PO Holway, allegedly leaning into the car through the driver’s side door. However, she could not clearly identify what actions he took while inside the vehicle. Sgt. Bruno then allegedly entered the vehicle through the front passenger’s side door. Similarly, § 87(2)(b) could not see what the officers were doing, but stated they were inside the vehicle for approximately two to three minutes. § 87(2)(b) did observe the officers open the rear doors and look in the backseat, near where her bag was located. At one point during the search, an officer, § 87(2)(b) could not recall which, popped the trunk from inside the car. In response, § 87(2)(b) allegedly pushed the trunk closed, and neither officer attempted to open it again, nor did either officer look inside.

PO Holway returned to where § 87(2)(b) was standing, and allegedly asked him for his license, which he provided. PO Holway took the license to their vehicle, and returned in less than a minute. He did not indicate why he did this. Either Sgt. Bruno or PO Holway then allegedly told § 87(2)(b) that her car smelled like marijuana and that she should have it cleaned, though none of the officers ever asked her, § 87(2)(b) or § 87(2)(b) if they were in possession of marijuana, or any contraband. The three officers returned to their vehicle and left the scene before § 87(2)(b) and § 87(2)(b) could re-enter her car. The entire encounter lasted approximately five minutes to ten minutes.

When § 87(2)(b) entered her vehicle, she was aware it had been searched because the center console was not fully closed, and because the items she kept inside were in disarray. A jar of peanuts was moved, along with receipts kept nearby. Her vehicle has two separate glove compartments, and while she could definitively tell that one had been opened, she was unsure if both had been searched. Her bag remained where she left it, and it appeared to not have been moved or opened.

§ 87(2)(b)

§ 87(2)(b) did offer that the officers questioned the occupants about an odor of marijuana emanating from the car. § 87(2)(b) testified that neither she nor § 87(2)(b) or § 87(2)(b) had smoked marijuana that day, and that there was no marijuana in her car on the incident date. However, she also stated that marijuana was not in her car or in the

possession of any of the occupants simply because she does not allow it to be brought into her vehicle. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b)

Therefore, it is recommended that **Allegations B, C, D, and E** be closed as **unsubstantiated**.

§ 87(4-b) § 87(2)(g)

Pod: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date